

Cause No. _____
(1)

In the Matter of

§ In the

§ _____
(2)

Marion T. Ellsworth

§ Travis

County, Texas

(3)

(4)

Petition for Order of Nondisclosure **Under Section 411.0729**

Marion T. Ellsworth (5) (“Petitioner”) respectfully petitions the court for an order of nondisclosure under Government Code Section 411.0729 for the offense detailed below.

1. Successful Completion of Veterans Reemployment Program

Petitioner was placed on community supervision or deferred adjudication community supervision for the misdemeanor offense of _____ (6) in Criminal Cause No. 2023CR004182 (7). On or after placement on community supervision, Petitioner elected to participate in a veterans reemployment program established under Subchapter H-1, Chapter 42A, Code of Criminal Procedure. Petitioner successfully completed the program and all other conditions of community supervision or deferred adjudication community supervision on _____ (8). Proof of Petitioner’s completion of the program is (9) attached.

2. Petitioner Satisfies the Requirements of Section 411.0729, Gov’t Code

Petitioner satisfies the requirements of Sec. 411.0729 of the Government Code in that:

- The offense for which the order is requested is a misdemeanor offense;
- Petitioner was placed on community supervision or deferred adjudication community supervision for the offense;
- Petitioner is a veteran of the United States Armed Forces, including a member of the reserves, national guard, or state guard;
- Petitioner successfully completed a veterans reemployment program approved by the court and all conditions of Petitioner's community supervision.

3. Petitioner Does Not Have to Satisfy the Requirements of Section 411.074, Gov't Code

The statute does not require Petitioner to satisfy the requirements of Government Code Section 411.074. *See Sec. 411.0729(b), Gov't Code.*

4. Petitioner is Entitled to File a Petition for an Order of Nondisclosure Under Section 411.0729, Gov't Code

A person is entitled to file a petition for an order of nondisclosure under Government Code Section 411.0729 if the person satisfies the requirements of the section.

As indicated above, Petitioner satisfies the requirements of the section.

5. Issuance of an Order of Nondisclosure is in the Best Interest of Justice

Issuance of an order is in the best interest of justice.

6. The Fee to File the Petition has been Paid or Otherwise Satisfied

Filing fees and court costs may be required to file this petition.

If so, Petitioner has included (10)

the required filing fees and court costs.

a Statement of Inability to Afford Payment of Court Costs.

7. Prayer for Relief

Petitioner asks the Court to grant Petitioner's request for an order of nondisclosure under Government Code Section 411.0729.

Respectfully submitted,

Signature (11)

Marion T. Ellsworth

Printed Name (12)

418 Sycamore Ridge Road

Address (13)

Austin, TX 78701

City, State, Zip (14)

555-0142

Telephone Number (15)